

TRADEMARK IN THE NEXT ECONOMY

Indian Trademark Law — Present Landscape & Future Trajectory

IDEAS
PEOPLE
BRANDS
PROGRESS

INDIAN
BRANDS
A BRIGHTER
TOMORROW

BRANDS POWER PEOPLE
PEOPLE BUILD POSSIBILITIES

INNOVATION
PROTECTION
TRUST
GROWTH

TRADITION
MEETS
TOMORROW

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2024 Amendments
& New Adjudication
Framework

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Landmark
Judgments
(2024–2026)

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Non-Traditional
Marks

04



Digital &
E-Commerce
Enforcement

05



The Future of
Indian Trademark
Law

*How brands, technology, enforcement and consumer trust are reshaping
trademark protection in India.*

Key Questions



How will AI change
brand creation and
clearance?



What counts as a trademark
in the next economy?



How should businesses
protect digital identities?



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EDITOR'S NOTE

India's trademark ecosystem has undergone a generational shift over the past twenty-four months. The twin engines of statutory reform and judicial creativity have reshaped the registration landscape, enforcement architecture, and the very definition of what constitutes a protectable mark. This issue of Juris Insight documents those changes comprehensively — distilling statutory amendments, landmark decisions, administrative reforms, and emerging trends — so that practitioners, brand owners, and IP strategists can navigate the road ahead with clarity.

We examine five broad themes in this edition: (i) the 2024 amendments and the new adjudication framework; (ii) recent landmark judgments that have recalibrated doctrinal benchmarks; (iii) the ascent of non-traditional marks; (iv) the digital and e-commerce enforcement frontier; and (v) the future of Indian trademark law in the age of artificial intelligence and global harmonisation.

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EDITORIAL FOCUS

01 2024 Amendments & New Adjudication Framework	02 Landmark Judgments (2024–2026)
03 The Rise of Non-Traditional Marks	04 Digital & E-Commerce Enforcement
05 The Future of Indian Trademark Law	FOR PRACTITIONERS • BRAND OWNERS • IP STRATEGISTS

“Navigate the road ahead with clarity.”

2024 AMENDMENTS & NEW ADJUDICATION FRAMEWORK

Recent reforms reshaping Indian trademark administration

EFFICIENT
REGULATION
STRONGER
BRANDS
BRIGHTER
INDIA

REFORMS
DIGITAL PROCESSES
ACCESSIBLE JUSTICE
STRONGER IP SYSTEM

TRUST
COMPLIANCE
TECHNOLOGY
PEOPLE
POSSIBILITIES

TRADEMARK REGISTRY

A MODERN IP ECOSYSTEM
FOR A STRONGER INDIA

IDEAS
PEOPLE
BRANDS
JUSTICE
TOMORROW

Key Developments at a Glance

01



Section 106 Omitted

Certain peripheral compliance obligations removed.

02



Sections 108 & 109 Removed

False registry-description and entry-falsification penalties removed.

03



Administrative Adjudication

Dedicated adjudicating officer mechanism introduced for specified violations.

04



Holding Inquiry & Appeal Rules, 2024

Electronic complaints, time-bound inquiry and structured appellate process.

05



Practical Impact

A more digital, standardised and complaint-driven enforcement pathway.

Why It Matters



Speed

Faster, more responsive trademark enforcement.



Procedural clarity

A more structured and predictable process.



Lower administrative friction

Simplified compliance and reduced regulatory burden.



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I. STATUTORY FRAMEWORK — RECENT AMENDMENTS

1.1 The Trade Marks Act, 1999 — Foundational Architecture

India's trademark regime is anchored in the Trade Marks Act, 1999 ('TM Act'), enacted to align domestic law with India's obligations under the TRIPS Agreement. The Act provides for registration, protection, assignment, licensing, and enforcement of trademarks across 45 classes of goods and services. Sections 11 and 29 govern relative and absolute grounds of refusal, while Sections 135–141 create the civil enforcement framework.

1.2 The 2024 Amendments — Key Changes

The Trade Marks (Amendment) Act came into force on 1 August 2024, introducing several structural changes:

- **Section 106 Omitted:** The provision penalising improper removal of goods with false marks has been removed, decriminalising certain peripheral compliance obligations.
- **Sections 108 & 109 Removed:** Provisions penalising falsely describing a place of business as connected with the Trademark Registry and falsification of registry entries have been struck.
- **Administrative Adjudication Introduced:** The Draft Trade Marks (1st Amendment) Rules, 2024 create a dedicated adjudicating officer mechanism for specified violations, reducing the burden on courts.

Key Reform: Trade Marks (Holding Inquiry and Appeal) Rules, 2024

Brought into force on 16 August 2024, these Rules provide for electronic filing of complaints to the adjudicating officer regarding violations under Section 107 (misuse of ® symbol, false claims of registration), time-bound inquiry procedures, and structured appellate remedies. This creates a complaint-driven administrative channel parallel to civil court proceedings.

1.3 Trade Marks Rules, 2017 — Continuing Relevance

The Trade Marks Rules, 2017 remain the operational backbone of the registration process. Rule 26(5) mandates that sound mark applications include an MP3 file and musical notations or sonograms. Rule 124 governs the declaration and listing of well-known trademarks, and Rule 45 prescribes the expedited examination process. The 2026 procedural framework has reinforced mandatory digital validation at the point of e-filing, so that incomplete applications are rejected outright rather than conditionally accepted.

1.4 The IPAB Abolition and Delhi HC Intellectual Property Division

A landmark structural reform preceded the 2024 amendments: in April 2021, the Intellectual Property Appellate Board (IPAB) was dissolved. Jurisdiction over trademark appeals and rectification petitions was transferred to the respective High Courts. The Delhi High Court responded by establishing a dedicated Intellectual Property Division ('IP Division'), which has since become the most active and precedent-setting forum for Indian trademark jurisprudence.

LANDMARK JUDGMENTS (2024–2026)

Key decisions influencing Indian trademark practice



KEY JUDGMENTS AT A GLANCE

01



**Under Armour Inc.
v. Anish Agarwal**

Overall commercial impression and even initial confusion can matter in infringement analysis.

02



**Goodai Global Inc.
v. Shahnawaz Siddiqui**

Bad-faith registration may be cancelled where a foreign brand has reputation and online visibility.

03



Beauty of Joseon

E-commerce availability and trans-border reputation can support rectification.

04



**Deepak Kumar Khemka
v. Yogesh Kumar Jaiswal**

Filing alone is not use; passing off depends on actual or imminent market use.

05



**Tata Sia Airlines Ltd.
v. Union of India
(Vistara)**

A judicial finding is not enough by itself; Rule 124 filing is still required for well-known listing.



PRACTICE LESSON

*Search deeper, preserve evidence of use,
and treat reputation as a provable asset.*



II. LANDMARK JUDICIAL DECISIONS — 2024 TO 2026

2.1 Deceptive Similarity and Consumer Confusion

Indian courts have progressively tightened the standard for deceptive similarity, moving from a purely phonetic/visual comparison to a holistic assessment of commercial impression.

Under Armour Inc. v. Anish Agarwal *Delhi HC, MANU/DE/3797/2025*

Held:

The Court held that deceptive similarity must be judged on overall commercial impression and that even initial confusion in consumer perception — transient though it may be — can constitute infringement. This effectively lowers the threshold from actual confusion to a likelihood of momentary confusion, with significant implications for brand clearance searches.

2.2 Trademark Squatting and Bad-Faith Registrations

Indian courts have adopted an increasingly proactive stance against trademark pirates who register foreign marks with no bona fide intent to use them.

Goodai Global Inc. v. Shahnawaz Siddiqui *Delhi HC, COMM. IPD-TM 81/2024*

Held:

The Court recognised global reputation and online presence as sufficient grounds to invalidate bad-faith registrations, even absent formal use in India. Where the foreign brand was accessible to Indian consumers through e-commerce and had documented trans-border reputation, registration by a domestic party with no independent association was held to be an act of bad faith warranting cancellation.

Beauty of Joseon (Korean Brand v. Indian Squatter) *Delhi HC, 2025*

Held:

The Court ordered cancellation of a 'proposed-to-be-used' registration obtained by an unrelated Indian party for a Korean skincare brand already available in India via e-commerce since 2022. The judgment reinforced that online availability and trans-border reputation together constitute sufficient prior use to anchor rectification proceedings.

2.3 Trademark vs. Prior Application — Use Requirement

Deepak Kumar Khemka v. Yogesh Kumar Jaiswal *Delhi HC, RFA(COMM) 381/2025*

Held:

The Court clarified that mere filing of a trademark application, without actual commercial use, does not amount to infringement or passing off. This decisively settles the debate around rights arising from application versus rights arising from use, reaffirming the common law principle that passing off requires actual or imminent use in the marketplace.

2.4 Well-Known Marks — Listing Procedure Clarified

Tata Sia Airlines Ltd. v. Union of India (Re: 'Vistara') *Delhi HC, 2023 — Continuing Precedent*

Held:

A judicial declaration that a mark is 'well-known' does not automatically result in its inclusion in the List of Well-Known Trademarks maintained by the Registrar. A separate Rule 124 application on Form TM-M, accompanied by the prescribed fee, is mandatory. Practitioners must build this step into post-litigation workflows.

2.5 Trans-Border Reputation — Evolving Jurisprudence

The doctrine of transborder reputation — imported through Paris Convention Article 6bis and developed through Indian common law — continues to expand. Courts now give significant weight to:

- Proof of international advertising and brand visibility, even in the absence of direct sales in India (N.R. Dongre v. Whirlpool principle).
- Online availability of the mark through e-commerce platforms, social media, or official websites accessible to Indian consumers.
- Evidence of consumer awareness gathered through market surveys, social media analytics, and media coverage.

However, the Supreme Court's caution in *Toyota v. Prius Auto* (2018) — requiring concrete evidence of Indian consumer awareness rather than mere international fame — continues to operate as a check against automatic extraterritorial protection.

BEYOND WORDS THE RISE OF NON-TRADITIONAL MARKS

MORE
THAN
A NAME
A DEEPER
CONNECTION

SOUNDS. COLOURS. SHAPES. SENSES.
A BROADER CANVAS FOR BRANDS.

INNOVATION
RECOGNITION
DISTINCTION
TRUST
FOR TOMORROW

DIFFERENT SENSES. STRONGER BRANDS.



Sound Marks

Distinctive sonic identity
can function as a mark.



Colour Marks

Single colours and
combinations require
strong distinctiveness
evidence.



Shape / 3D Marks

The shape must identify
source, not merely
function.



Packaging

Trade dress and packaging
may become protectable
brand assets.



Scent Marks

A promising but still
difficult category
in India.



Taste Marks

Legally fascinating, but
representation
challenges remain.

What Applicants Need



Acquired
distinctiveness



Sales and
advertising data



Duration
of use



Consumer
recognition



Clear
representation



Sound mark filings require MP3 submission and notation.



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III. NON-TRADITIONAL TRADEMARKS — THE EMERGING FRONTIER

3.1 Legal Framework

The TM Act's definition of 'mark' under Section 2(1)(m) is intentionally broad, encompassing device, brand, heading, label, ticket, name, signature, word, letter, numeral, shape of goods, packaging, and combination of colours. Rule 26(5) of the Trade Marks Rules, 2017 provides the procedural pathway for sound marks. However, the Act does not explicitly enumerate non-traditional marks, leaving judicial and administrative interpretation to fill the gap.

3.2 Sound Marks

India's journey with sound marks began with Yahoo!'s yodel, the first registered sound mark. The Registry has since evolved its approach:

Kingfisher 'Oo la la la le o' — Sound Mark Registered (February 2026)

United Breweries Limited secured trademark registration for its distinctive Kingfisher jingle as a sound mark (effective January 31, 2025; certificate issued February 5, 2026) valid for ten years. This follows Indian Hotels Company Limited's registration of a sonic identity for the 'Taj' brand — the first sound mark granted to an Indian hospitality company. Under the 2026 procedural framework, MP3 file upload and musical notation are validated at the point of e-filing; incomplete submissions are rejected outright.

3.3 Colour Marks

Colour marks face the dual challenge of acquired distinctiveness and graphical representation. The 2026 procedural reforms now require a precise Pantone or equivalent colour code entered in a dedicated Registry field, eliminating vague colour descriptions. Christian Louboutin's red sole litigation has influenced the Indian approach, though registration of single-colour marks remains an uphill task absent overwhelming evidence of secondary meaning.

3.4 Shape and Packaging Marks

Shape marks must demonstrate a trademark function — source identification — rather than functional or aesthetic purpose. The Registry and courts routinely require comprehensive evidence of acquired distinctiveness including sales data, advertising expenditure, duration of use, and consumer surveys. The Zippo Lighter (Delhi HC) remains the leading domestic precedent for shape mark protection, with the Court granting an interim stay based on the lighter's unique and distinctive configuration.

3.5 Scent and Taste Marks

The most nascent category: a pending application for a rose-scented tyre as a scent trademark — if granted — would be a first for India and a significant precedent for olfactory marks. The fundamental challenge remains graphical representation, as the TM Act has not yet been amended to adopt the EU-style 'any form of representation' standard. Legislative reform is anticipated in future amendments.

BRANDS
TRAVEL
FURTHER
TRUST
KEEPS THEM
STRONGER

DIGITAL & E-COMMERCE ENFORCEMENT

Protecting brands in a borderless marketplace.

COMMERCE
TECHNOLOGY
LAW
PEOPLE
A SAFER
DIGITAL TOMORROW



Key Issues in Focus



Counterfeit Listings

Marketplaces can become high-speed channels for brand misuse.



Keyword Advertising

Use of a mark as a keyword turns on confusion and unfair advantage.



Platform Liability

Notice-and-takedown frameworks continue to shape intermediary responsibility.



Domain Name Disputes

Bad-faith domain registration remains a major online enforcement issue.



Social Media Impersonation

Handles, pages and digital identities now require active monitoring.

Enforcement Playbook



01 Monitor

Track marketplaces, domains, ads and social media.



02 Document

Preserve evidence and assess the infringement.



03 Notify

Send takedown requests to platforms and service providers.



04 Escalate

Pursue further action including legal remedies where needed.

“Digital trust is part of trademark protection.”



IV. DIGITAL COMMERCE AND E-COMMERCE ENFORCEMENT

4.1 The E-Commerce Infringement Problem

The digitalisation of Indian retail has created new vectors of trademark infringement: counterfeit product listings on marketplaces, domain squatting, social media impersonation, and keyword advertising misuse. Indian courts are actively developing doctrines to address each.

4.2 Keyword Advertising

The Singhanian & Co. IP Bulletin notes that the Delhi High Court has ruled that using a trademark as a search engine keyword does not automatically constitute infringement unless it causes consumer confusion or provides the advertiser an unfair advantage. This evidence-based assessment approach, rather than a per se rule, reflects the global trend post-Google France (ECJ, 2010) and aligns India with the more nuanced UK and US positions.

4.3 E-Commerce Platform Liability

Intermediary liability for trademark infringement on platforms remains governed by the Information Technology Act, 2000 and the IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021. Courts have increasingly issued dynamic injunctions requiring platforms to delist infringing sellers and implement notice-and-takedown mechanisms, drawing on the John Doe (Ashok Kumar) injunction framework.

4.4 Domain Name Disputes

The .IN Registry and WIPO UDRP continue to operate as primary venues for domain squatting disputes. Courts have consistently applied trademark passing off principles to domain disputes, holding that registration of a domain name incorporating a well-known mark with no independent legitimate interest constitutes bad faith.

DIGITAL ENFORCEMENT WATCHLIST

01 Counterfeit Listings	02 Keyword Advertising	03 Platform Liability	04 Domain Name Disputes	05 Social Media Impersonation
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THE FUTURE OF INDIAN TRADEMARK LAW

Trends shaping the next decade

PEOPLE
BRANDS
INNOVATION
PROSPERITY
TOGETHER

TRADITION
MEETS
TECHNOLOGY
BUILDS
TOMORROW

INDIAN
IDEAS
GLOBAL
IMPACT

PROTECT
INNOVATE
EXPAND
INCLUDE
SUSTAIN

FROM
TO A MORE
INCLUSIVE
TOMORROW

Six Key Trends for the Next Decade



AI-Assisted Examination

Registry tools may improve conflict detection and procedural efficiency.



Predictive Clearance

Search strategy will become smarter, faster and more data-driven.



Blockchain Records

Ownership trails and assignments may become more tamper-resistant.



Startup & MSME Access

Lower barriers can democratise brand protection.



Madrid & Global Expansion

Indian brands will internationalise earlier in their lifecycle.



GI and IP Convergence

Trademark strategy will increasingly intersect with adjacent IP regimes.

What Brand Owners Should Do Now



Adopt strong clearance practices



Register early



Preserve evidence of use



Monitor digital markets continuously



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V. THE FUTURE OF INDIAN TRADEMARK LAW

5.1 AI-Assisted Examination and Registry Modernisation

The Controller General of Patents, Designs and Trademarks (CGPDTM) is actively developing AI-assisted examination tools to address the filing backlog and improve examination accuracy. Anticipated developments include:

- Automated conflict detection across phonetic, visual, and conceptual similarity dimensions.
- AI-powered prior art searches that flag potential deceptive similarity before examination reports are issued.
- Predictive brand protection models that analyse marketplace trends to anticipate infringement patterns.

Industry Outlook (Lexology, December 2025)

If 2025 was the year of adaptation, 2026 is the year of acceleration. Predictive brand protection models — where AI anticipates infringements before they happen by analysing marketplace trends and social signals — are becoming standard practice for large brand owners. By 2026, the line between brand, experience, and technology will blur entirely, and non-traditional trademarks will be the currency of trust in both digital and real-world commerce.

5.2 Blockchain-Based IP Registries

Discussions under India's Digital India and AI Governance initiatives include the integration of blockchain-backed IP registries for tamper-proof ownership records, renewal tracking, and assignment chains. A distributed ledger approach would reduce disputes over chain-of-title and create an immutable audit trail from the date of application. While no legislative framework has been enacted, the CGPDTM has acknowledged blockchain as a priority area for Registry modernisation.

5.3 Startup and MSME Facilitation

The government has signalled a clear policy intent to democratise trademark protection for startups and MSMEs:

- Reduced official fees for MSME and individual applicants (already partially implemented — applications as low as ₹999 under certain plans).
- Fast-track examination for startups registered under the DPIIT's Startup India programme.
- Legal awareness campaigns and assisted filing programmes targeting Tier II and Tier III cities.
- Simplified enforcement pathways to challenge infringement without disproportionate litigation costs.

5.4 Madrid Protocol and International Harmonisation

India acceded to the Madrid Protocol in 2013, enabling Indian brand owners to file internationally through a single WIPO application. Future amendments are expected to further streamline cross-border registration procedures and align examination timelines with major trading partners. India's growing participation in bilateral investment treaties and FTA negotiations includes IP chapters that may influence domestic trademark standards in areas such as data exclusivity, enforcement mechanisms, and geographical indications protection.

5.5 Geographical Indications — The GI-Trademark Interface

The Geographical Indications of Goods (Registration and Protection) Act, 1999 operates alongside the TM Act to protect origin-linked products. Indian courts have consistently held that a GI tag does not automatically override an earlier trademark registration for the same term, but where a term has become synonymous with a geographical origin, registration as a private trademark faces heightened distinctiveness challenges. Legislative alignment between the two regimes remains an unresolved priority.

5.6 Plant Varieties, Trade Dress, and the IP Ecosystem

Indian trademark law is increasingly intersecting with adjacent IP regimes — trade dress protection under passing off, personality rights (*Anil Kapoor v. Generative AI*, 2023 — first of its kind), and the protection of traditional knowledge from trademark appropriation. The IP ecosystem of the next decade will demand practitioners who can navigate these intersections fluently.

VI. PRACTITIONER'S CHECKLIST — ACTION POINTS

Based on the foregoing analysis, practitioners and brand counsel should address the following immediate priorities:

Issue	Action
Well-Known Mark Listing	After any judicial declaration, file Rule 124 TM-M form separately with the Registrar — judicial orders do not trigger automatic listing.
Non-Traditional Mark Applications	Prepare pre-filing evidence bundles (sales data, advertising spend, surveys, duration of use) rather than waiting for an examination objection. Submit MP3 + notations simultaneously for sound marks.
Brand Clearance Searches	Update search protocols to assess overall commercial impression and phonetic-visual-conceptual similarity holistically, following <i>Under Armour v. Anish Agarwal</i> .
E-Commerce Monitoring	Deploy AI-powered marketplace monitoring tools to detect counterfeit listings, unauthorised keyword use, and domain squatting. Establish an internal notice-and-takedown workflow.
Trans-Border Clients	For foreign brands entering India, document Indian consumer awareness early — e-commerce availability, social media reach, media coverage in Indian publications — to anchor trans-border reputation claims before any dispute arises.
Administrative Complaints	For misuse of ® symbol or false registration claims, consider the new electronic complaint mechanism under the Holding Inquiry Rules, 2024 as a faster, lower-cost alternative to civil proceedings.
Startup Clients	Advise on DPIIT Startup India recognition to access reduced trademark fees and fast-track examination. File as early as possible — priority is use-based in passing off disputes.

CLOSING REMARKS

Indian trademark law stands at an inflection point. The statutory reforms of 2024, the jurisprudential energy of the Delhi HC IP Division, the operationalisation of non-traditional marks, and the horizon of AI-driven examination all signal a maturing IP ecosystem that increasingly meets global standards while grappling with distinctively Indian challenges — the informal economy, linguistic plurality, and the rapid digitalisation of commerce.

For practitioners, the imperative is clear: develop cross-disciplinary fluency across the TM Act, Rules, IT law, competition law, and the law of passing off. For brand owners, the message is equally direct: register early, document use systematically, and invest in monitoring infrastructure before an infringement crisis materialises.

Juris Insight will continue to track these developments and bring you timely analysis each quarter.

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PRACTICE TAKEAWAY

Register early • document use systematically • invest in monitoring before an infringement crisis materialises.

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